

**Court No. - 21**

**Case :-** WRIT - C No. - 45945 of 2014

**Petitioner :-** Pushpa Jindal

**Respondent :-** State Of U.P. & 3 Others

**Counsel for Petitioner :-** Sharad Malviya, M.I. Farooqui

**Counsel for Respondent :-** C.S.C., Chandan Agrawal

**Hon'ble Amreshwar Pratap Sahi, J.**

**Hon'ble Vivek Kumar Birla, J.**

Heard learned counsel for petitioner and Shri Vishal Mitra for respondent nos. 3 and 4.

This petition has been filed with a stay application, which contains an incorrect prayer with regard to some other case. The counsel for the petitioner is permitted to not press the stay application that is accordingly rejected.

We have heard the writ petition and we find that the prayer is for a writ of mandamus to convert the domestic electric supply connection to a commercial connection which has been requested keeping in view the extent of sanctioned load for the premises in question.

The counsel for respondents submits that whatever is the grievance of the petitioner, the same shall be redressed by respondent no.3 by passing an appropriate order.

In view of the aforesaid submission raised the writ petition is **disposed of** with directions to respondent no.3 to pass appropriate orders on the application of the petitioner provided it is in accordance with the law and fulfills the terms and conditions of the Electricity Supply Code, 2005. We make it clear that we have not adjudicated upon the claim of the petitioner on merits in respect of such request for conversion, which shall be independently examined and orders will be passed within three months.

**Order Date :-** 1.9.2014

RKP

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**Hon'ble Amreshwar Pratap Sahi, J.**

**Hon'ble Vivek Kumar Birla, J.**

**Order on stay application**

Rejected.

For orders see our order of date passed on writ petition.

**Order Date :-** 1.9.2014 RKP